

#	Case Name	Tentative
		motion to strike, where the allegations in the Complaint are presumed to be true. The case management conference is continued to February 8, 2027 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
55.	Simpson v. A Mission for Michael Inc. 2025-01504467	<u>Demurrer to Third Amended Complaint</u> Defendant A Better Life Recovery LLC dba A Mission for Michael's (AMFM) demurrer to third amended complaint is OVERRULED. AMFM shall answer the third amended complaint (TAC) within 10 days. The TAC states facts sufficient to constitute the first and third causes of action for dependent adult abuse and wrongful death. (See <i>Covenant Care, Inc. v. Superior Court</i> (2004) 32 Cal.4th 771, 783 [dependent adult abuse based on neglect, elements]; <i>Carter v. Prime Healthcare Paradise Valley LLC</i> (2011) 198 Cal.App.4th 396, 406-407 (<i>Carter</i>) [same]; see <i>Winn v. Pioneer Medical Group, Inc.</i> (2016) 63 Cal.4th 148, 155; Welf. & Inst. Code, §§ 15610.57, subds. (a)(1), (b) [neglect]; <i>Quiroz v. Seventh Ave. Center</i> (2006) 140 Cal.App.4th 1256, 1263 [wrongful death, elements].) Contrary to AMFM's contentions, the TAC adequately alleges the decedent was a "dependent adult" within the meaning the Elder Abuse and Dependent Adult Civil Protection Act (Act), and that AMFM was a "care custodian." (See Welf. & Inst. Code, § 15610.23, subd. (a) [dependent adult]; <i>id.</i>, § 15610.17, subds. (j), (y) [care custodian]; Health & Saf. Code, § 1502, subd. (a)(7); see also TAC ¶¶ 16-17, 24, 26-28.) The TAC also adequately alleges AMFM acted with "recklessness." (See <i>Carter, supra</i>, 198 Cal.App.4th at p. 407 [recklessness]; <i>Delaney v. Baker</i> (1999) 20 Cal.4th 23, 31-32 ["Recklessness, unlike negligence, involves more than 'inadvertence, incompetence, unskillfulness, or a failure to take precautions' but rather rises to the level of a 'conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.' "]; CACI No. 3113 [under the Act, "recklessness" means the defendant "knew it was highly probable that [its] conduct would cause harm and [it] knowingly disregarded this risk"].) The TAC alleges AMFM

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		knew it was highly probable that the failure to provide decedent with 24-hour supervision would cause plaintiff serious harm/death, but that it consciously disregarded this risk and left him unsupervised instead. (See TAC ¶¶ 3, 16, 19, 26, 29, 55-56.) <u>Motion to Strike Portions of Third Amended Complaint</u> Defendant A Better Life Recovery LLC dba A Mission for Michael's motion to strike portions of third amended complaint is DENIED. The motion is procedurally defective. (See Cal. Rules of Court, rule 3.1322 ["A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense."]; see also Ntc. of Mtn. & Mtn, pp. 1-3.) The case management conference is continued to February 8, 2027 at 9:00 a.m. in Department C28. Defendant shall give notice of all of the above.
56.	Castillo v. Target Corporation 2024-01423525	Plaintiff Sandra Castillo's motion to set aside dismissal is GRANTED. (Code Civ. Proc., § 473, subd. (b) [mandatory relief based on attorney affidavit of fault]; Degani Decl., ¶¶ 6-8; see also <i>Zamora v. Clayborn Contracting Group, Inc.</i> (2002) 28 Cal.4th 249, 257 [mandatory relief even where attorney fault is "inexcusable"].) The court VACATES the 10-13-25 and 12-4-25 orders dismissing this action without prejudice. Defendant's request for judicial notice is GRANTED. The court sets a Case Management Conference for February 8, 2027 at 9:00 a.m. in Department C28. Moving party shall give notice of this ruling.
57.	Matthew R. Silver and Civica Law Group APC v. Curtis R. Wright 2025-01478015	Petitioners Matthew R. Silver's petition for an award of reasonable attorney's fees incurred in enforcing the judgment is GRANTED. Code of Civil Procedure § 685.040 entitles a judgment creditor to reasonable fees and costs incurred by enforcing a judgment "if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5."